IN THE SUPREME COURT OF PAKISTAN
Present:
* Hon'ble Mr. Justice Qazi Faez Isa, CJ
* Hon'ble Mr. Justice Amin-ud-Din Khan
* Hon'ble Mr. Justice Athar Minallah

Civil Appeal No. 377 of 2016
Citation: 2016 SCMR 1183
Matter ID: MAT-CORP-2016-005

BETWEEN:
Lucky Cement Corporation ... Appellant / Petitioner
VERSUS
Banking Court No. II, Multan ... Respondent

LEGAL TOPIC: Corporate - Winding Up & Insolvency
STATUTES CITED: Companies Act 2017, S. 301, Banking Companies Ordinance 1962, S. 40

JUDGMENT
1. This judgment disposes of Civil Appeal No. 377 of 2016, directed against the final judgment rendered by the court below.
2. We have heard the learned counsel for the petitioner as well as the learned Additional Attorney General and perused the record with their able assistance.
3. The principal question requiring determination is:
Whether the impugned order violates principles of natural justice and Article 10A of the Constitution?
4. Learned counsel for the appellant vehemently argued that the statutory safeguards embodied in Companies Act 2017, S. 301 were disregarded, thereby causing grave miscarriage of justice. On the contrary, learned counsel for the respondent defended the impugned judgment, asserting that full opportunity of hearing was afforded.
5. Having evaluated the record and relevant case law, it is well-settled that procedural law is handmaid of justice and cannot be weaponized to thwart substantive rights. The evidence on record clearly supports the findings arrived at.
6. HOLDING & RATIO DECIDENDI:
In view of the clear mandate of law laid down under Companies Act 2017, S. 301 and guaranteed fundamental rights, this petition is allowed. The impugned judgment is set aside and matter is remanded for decision afresh on merits.

Decided on: 26 October 2016.